

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 503

BY RESOURCES AND CONSERVATION COMMITTEE

AN ACT

RELATING TO THE SOIL AND WATER CONSERVATION COMMISSION; AMENDING SECTION 22-2718, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE IDAHO STATE SOIL AND WATER CONSERVATION COMMISSION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 22-2718, Idaho Code, be, and the same is hereby amended to read as follows:

22-2718. IDAHO STATE SOIL AND WATER CONSERVATION COMMISSION. (1) There is hereby established and created in the ~~department of agriculture~~ department of water resources of the state of Idaho the Idaho state soil and water conservation commission which shall perform all functions conferred upon it by this chapter and shall be a nonregulatory agency.

(a) The commission shall consist of seven (7) members appointed by the governor from divisions of the Idaho association of soil conservation districts as follows: one (1) member from division I, one (1) member from division II, one (1) member from division III, one (1) member from division IV, one (1) member from division V, one (1) member from division VI, and one (1) at-large member appointed at the governor's discretion.

(b) Commission members shall be chosen with due regard to their demonstrated expertise, including knowledge of conservation districts and their functions, knowledge of production agriculture, knowledge of banking or other similar financial experience, or experience as a county commissioner.

(c) Commissioners serving on July 1, 2022, will be assigned to the divisions that they would represent. On July 1, 2022, current commissioners, at the will of the governor, will be reappointed to the position representing the divisions in which they live.

(d) For divisions that have vacant positions, or divisions with no current commissioner residing there, the division shall submit a list of up to three (3) names for each open commission position. The governor shall appoint commission seats from the list submitted.

(e) The term of each commissioner shall be for five (5) years, with the ability to serve two (2) terms; except that on July 1, 2022, the terms of each commission position will be reset: The term of the commissioners from districts I and IV will be set for two (2) years. The term of the commissioners from districts II and V will be set for three (3) years. The term of the commissioners from districts III and VI and the at-large commissioner will be set for four (4) years. From and after the initial appointment or reappointment, commissioners may serve two (2) full terms of five (5) years, in addition to their initial appointment. From

1 and after the initial appointment, the corresponding division shall
2 provide the list of three (3) names to the governor to choose from on or
3 before July 1 of each year with a vacancy.

4 (f) Each vacancy on the commission shall be filled by appointment by
5 the governor following the guidelines set forth in this subsection. A
6 vacancy that occurs in an unexpired term shall also be filled for its
7 remainder by the governor's appointment following the guidelines set
8 forth in this subsection. Each commissioner appointed to fill an unex-
9 pired term may serve the length of the unexpired term and be eligible to
10 be reappointed for an additional two (2) full terms.

11 (g) All appointments shall be confirmed by the senate. Commission mem-
12 bers shall serve at the pleasure of the governor. The commission may in-
13 vite the state conservationist of the United States department of agri-
14 culture natural resources conservation service, the dean of the uni-
15 versity of Idaho college of agricultural and life sciences or his des-
16 ignated representative, or any other person or entities the commission
17 deems appropriate to serve as nonvoting advisory members of the commis-
18 sion. The commission shall keep a record of its official actions, shall
19 adopt a seal, which seal shall be judicially noticed, and may perform
20 such acts, hold such public hearings, and promulgate such rules as may
21 be necessary for the execution of its functions under this chapter.

22 (2) The state soil and water conservation commission shall appoint
23 the administrator of the state soil and water conservation commission. The
24 state soil and water conservation commission may employ such technical ex-
25 perts and such other agents and employees, permanent and temporary, as it
26 may require, and shall determine their qualifications, duties and compen-
27 sation. The commission may call upon the attorney general of the state for
28 such legal services as it may require. It shall have authority to delegate to
29 its chairman, to one (1) or more of its members, or to one (1) or more agents
30 or employees, such powers and duties as it may deem proper. The commission
31 may establish offices, incur expenses, enter into contracts and acquire
32 services and personal property as may be reasonable for the proper adminis-
33 tration and enforcement of this chapter. Upon request of the commission, for
34 the purpose of carrying out any of its functions, the supervising officer of
35 any state agency, or of any state institution of learning, shall insofar as
36 may be possible under available appropriation, and having due regard to the
37 needs of the agency to which the request is directed, assign or detail to the
38 commission members of the staff or personnel of such agency or institution of
39 learning, and make such special reports, surveys or studies as the commis-
40 sion may request.

41 (3) The commission shall designate its chairman, and may from time to
42 time, change such designation. A majority of the commission shall consti-
43 tute a quorum and the concurrency of a majority in any matter within their
44 duties shall be required for its determination. The chairman and members of
45 the commission shall be compensated as provided by section 59-509(h), Idaho
46 Code. The commission shall provide for the execution of surety bonds for
47 all employees and officers who shall be entrusted with funds or property;
48 shall provide for the keeping of a full and accurate record of all proceed-
49 ings and of all resolutions, and orders issued or adopted; and shall provide
50 for a periodic management review of the accounts of receipts and disburse-

1 ments as determined by the legislative auditor pursuant to section 67-702,
2 Idaho Code.

3 (4) In addition to the duties and powers hereinafter conferred upon the
4 state soil and water conservation commission, it shall have the following
5 responsibilities:

6 (a) To offer such assistance as may be appropriate to the supervisors of
7 soil conservation districts in the carrying out of any of their powers
8 and programs.

9 (b) To keep the supervisors of each of the several soil conservation
10 districts informed of the activities and experience of all other soil
11 conservation districts and to facilitate an interchange of advice and
12 experience between such districts and cooperation between them.

13 (c) To coordinate the progress of the several soil conservation dis-
14 tricts so far as this may be done by advice and consultation.

15 (d) To secure the cooperation and assistance of the United States and
16 any of its agencies, and of agencies of this state, in the work of such
17 districts.

18 (e) To disseminate information throughout the state concerning the ac-
19 tivities and programs of the soil conservation districts in areas where
20 their organization is desirable.

21 (f) To provide for the establishment and encouragement of the "Idaho
22 OnePlan" as a primary computer-based conservation planning process for
23 all natural resource concerns. Establishment and encouragement will
24 be accomplished through an executive group and steering committee both
25 containing private, state and federal representation. The information
26 provided by those using the "Idaho OnePlan" shall be deemed to be trade
27 secrets, production records or other proprietary information and shall
28 be kept confidential and shall be exempt from disclosure pursuant to
29 section 74-107, Idaho Code.

30 (5) In addition to other powers, functions and duties of soil conserva-
31 tion districts and the state soil and water conservation commission provided
32 in this chapter, the commission shall have the following additional powers,
33 functions and duties:

34 (a) The commission shall conduct, in cooperation with appropriate fed-
35 eral and state agencies and the owners and operators of privately owned
36 forest lands, rangelands and agricultural lands in this state, conser-
37 vation improvements on or in respect to these lands for the purposes of
38 implementing conservation systems to conserve and improve natural re-
39 source conditions;

40 (b) The commission shall assist and advise soil conservation districts
41 and other entities in implementing the conservation improvements,
42 projects and the water quality program for agriculture. To the extent
43 that there are available general funds, the commission shall provide
44 for grants and cost-share opportunities and, as legislatively design-
45 ated, utilize the resource conservation and rangeland development
46 fund for loans for conservation improvements. Provided however, that
47 the commission shall determine whether general or resource conserva-
48 tion and rangeland development funds are available before approving any
49 conservation improvements, projects and cost-share opportunities and,

1 after having made such determination, shall enter into the necessary
2 contracts for implementation;

3 (c) The commission shall be the agency responsible for the administra-
4 tion of funds accruing to the resource conservation and rangeland de-
5 velopment fund and for all general funds appropriated as a separate and
6 distinct action of the legislature to implement the powers, functions
7 and duties of soil conservation districts and the commission;

8 (d) On or before March 1 of each year, the commission shall report to the
9 senate agricultural affairs committee and the house agricultural af-
10 fairs committee; and

11 (e) The commission shall promulgate such rules as are necessary to
12 carry out the purposes of this chapter.

13 SECTION 2. An emergency existing therefor, which emergency is hereby
14 declared to exist, this act shall be in full force and effect on and after
15 July 1, 2026.